KINWARD

Alpha Founding Partner Agreement

This Alpha Founding Partner Agreement (the **"Agreement"**) is made on the Effective Date shown on the signature page between:

1. **Catapult**, the provider of the Kinward service (**"Catapult"**, **"we"**, **"us"**); and
2. **The organisation named on the signature page** (the **"Organisation"**, **"you"**).

Each is a **"Party"** and together the **"Parties"**.

Background

A. Catapult provides Kinward, a service that runs a senior living community's public website and keeps residents' families informed by text message, email and printed material, from content posted once by community staff.

B. Before Kinward is generally available, Catapult is running an alpha programme with a small number of founding operators. In return for using Kinward in live operation, giving feedback and taking part in measurement, the Organisation receives the service free of charge until the results set out in this Agreement are met, and a founding price after that.

The Parties therefore agree as follows.

1. Definitions

In this Agreement:

"Acceptance List" means the list of website and setup items in Schedule A, as tailored and signed off by both Parties before Kickoff.

"Adoption Targets" means the usage targets for the Organisation's staff and families agreed in writing at Kickoff and recorded in Schedule B.

"Alpha Period" means the period of 90 days starting on the Switch Date, as extended under clause 8.

"Business Day" means a day other than a Saturday, Sunday or US federal holiday.

"Content" means all text, images, menus, calendars, photographs, contact details and other material that the Organisation, its staff, residents or families submit to the Service.

"Conversion Date" means the date the Organisation's paid subscription starts under clause 9.

"Decision Meeting" means the meeting held under clause 7.3 at the end of the Alpha Period.

"Founding Price" means the monthly fee per Pilot Community set out in Schedule D.

"Kickoff" means the first working session between the Parties after this Agreement is signed.

"Organisation Commitments" means the obligations in clause 5 and Schedule B.

"Pilot Communities" means the senior living communities listed in Schedule D.

"Pre-Alpha" means the period from Kickoff to the Switch Date.

"Review Window" and **"Switch Deadline"** mean the number of Business Days set out in Schedule D for each.

"Service" means the Kinward website, family messaging, digest, print and related features made available to the Organisation under this Agreement, including updates Catapult makes during the Term.

"Success Criteria" means the measures and targets in Schedule C.

"Switch Date" means the date on which the Organisation's domain name records are pointed to the Service under clause 4.3.

"Term" has the meaning given in clause 2.

2. Term

2.1 This Agreement starts on the Effective Date and continues through Pre-Alpha and the Alpha Period.

2.2 If the Organisation converts under clause 9, this Agreement continues for the Subscription Term set out in clause 9.3 and any renewal.

2.3 This Agreement ends earlier if terminated under clause 12. The period during which this Agreement is in force is the **"Term"**.

3. What Catapult provides

3.1 **Build and setup.** During Pre-Alpha, Catapult will, for each Pilot Community:

(a) build the new website alongside the Organisation's existing website, without interrupting it;

(b) load the calendars, menus, apartment details, care levels and photographs the Organisation provides;

(c) import the family contacts the Organisation provides, in whatever form they are held;

(d) file and manage the text-messaging registration with carriers;

(e) train the Organisation's staff and named champions; and

(f) take the baseline measurements described in Schedule C, with the Organisation's help.

3.2 **No setup fee.** Catapult will not charge any setup, build, migration or onboarding fee for the Pilot Communities, during the Alpha Period or afterwards.

3.3 **Free service.** The Service is provided free of charge from the Effective Date until the Conversion Date.

3.4 **During the Alpha Period**, Catapult will:

(a) provide support by email and phone during normal business hours (Pacific time);

(b) measure the Success Criteria and send the Organisation a monthly scorecard for each Pilot Community;

(c) hold a short feedback call every two weeks and check-ins at day 30, day 60 and day 90; and

(d) build the Service to meet the Web Content Accessibility Guidelines (WCAG) 2.1 Level AA.

3.5 **Changes to the Service.** Catapult may update and improve the Service during the Term. Catapult will not remove a feature on the Acceptance List without the Organisation's written agreement.

4. Acceptance and the switch

4.1 **Acceptance List.** Before Kickoff the Parties will agree and sign off the Acceptance List for each Pilot Community. Only the items on the signed Acceptance List are conditions of acceptance.

4.2 **Review.** When Catapult notifies the Organisation that the Acceptance List has been met, the Organisation has the Review Window to notify Catapult in writing of any item that does not meet the Acceptance List. Catapult will fix any such item and notify the Organisation again, and a new Review Window starts for those items only. If the Organisation does not notify Catapult of any unmet item within the Review Window, the Acceptance List is deemed accepted.

4.3 **The switch.** Within the Switch Deadline after acceptance (or deemed acceptance), the Organisation will point the domain name records for each Pilot Community's website to the Service, following Catapult's instructions.

The new website goes live together with family messaging, the digest and print on the Switch Date, and the Alpha Period starts.

4.4 **New requests.** Requests made after sign-off of the Acceptance List are recorded on a post-launch list. They are not conditions of acceptance and do not delay the Switch Date.

4.5 **Failure to switch.** If the Organisation does not complete the switch within the Switch Deadline, Catapult may end the Alpha Period and terminate this Agreement by written notice. In that case clause 13 applies, and the Organisation does not keep the website built under this Agreement.

5. What the Organisation commits to

5.1 The Organisation will:

(a) name a decision-maker (owner, chief executive or chief operating officer) and a staff champion in each Pilot Community at signing, and replace either promptly if they leave;

(b) provide the Content needed for the Acceptance List, including calendars, menus, apartment details, photographs and family contacts, during Pre-Alpha;

(c) support the baseline measurements in Schedule C, including a one-week staff time diary, resident and family surveys, a snapshot of the current website, two to four weeks of activity attendance counts and, if available, the last 90 days of inquiries from its customer relationship management system;

(d) complete the switch under clause 4.3;

(e) take part in the feedback calls, check-ins and a leadership interview at day 90;

(f) allow resident and family surveys to be run in the Pilot Communities, subject to clause 11.4(c); and

(g) work towards the Adoption Targets.

5.2 **Effect of missed commitments.** The Success Criteria measure outcomes that depend on the Organisation Commitments. If the Organisation materially fails to meet an Organisation Commitment or an Adoption Target, and does not put it right within 10 Business Days of Catapult's written notice, the free extension in clause 8.1 does not apply. Catapult may, at its discretion, provide extra training, content or launch support to help the Organisation get back on track.

6. Acceptable use

6.1 The Organisation is responsible for its Content and for the use of the Service by its staff. The Organisation will not use the Service to send messages to people who have not consented to receive them, to send unlawful, misleading or harmful material, or to infringe anyone's rights.

6.2 All messages require approval by an authorised member of the Organisation's staff before sending. Catapult will not send messages on the Organisation's behalf without that approval, except service messages such as opt-out confirmations.

7. Success Criteria and the Decision Meeting

7.1 **Measurement.** Catapult will measure the Success Criteria for each Pilot Community as set out in Schedule C. Setup criteria are counted from Kickoff; all other criteria are counted from the Switch Date.

7.2 **Pass rule.** The Success Criteria are met when every criterion in Schedule C has reached its target. The Organisation may waive any criterion in writing.

7.3 **Decision Meeting.** Within 10 Business Days after the end of the Alpha Period, the Parties will hold a Decision Meeting with the Organisation's decision-maker to review the final scorecard. Catapult will then give the

Organisation written notice stating whether the Success Criteria have been met (the **"Results Notice"**).

8. Free extension

8.1 **Extension.** If the Results Notice states that one or more Success Criteria have not been met, and the Organisation has met the Organisation Commitments, the Alpha Period is extended free of charge in 30-day periods. Catapult will issue a new Results Notice at the end of each extension.

8.2 **Limit.** The Alpha Period will not extend beyond 180 days after the Switch Date.

8.3 **If the criteria are still not met.** If the Success Criteria have not been met by the end of the last extension, the Organisation may either:

(a) convert under clause 9 at the Founding Price; or

(b) end this Agreement by written notice within 10 Business Days, owing nothing.

If the Organisation does neither, this Agreement ends at the end of that 10-Business-Day period. If this Agreement ends under this clause, clause 13 applies.

8.4 **Missed commitments.** If clause 5.2 applies, there is no automatic extension. Catapult may offer an extension of up to 30 days at its discretion. At the end of the Alpha Period the Organisation may convert under clause 9 or end this Agreement under clause 8.3(b).

9. Conversion to a paid subscription

9.1 **Conversion.** If the Results Notice states that the Success Criteria have been met, the Organisation's paid subscription starts on the first day of the month following the Results Notice (the **"Conversion Date"**), unless the Organisation declines under clause 9.2.

9.2 **Right to decline.** The Organisation may decline to convert by written notice within 10 Business Days of the Results Notice. If it does, this Agreement ends at the end of that period, the Organisation owes nothing, and clause 13 applies.

9.3 **Subscription Term.** The paid subscription runs for 24 months from the Conversion Date (the **"Subscription Term"**) and then renews for successive 12-month periods unless either Party gives written notice of non-renewal at least 60 days before the end of the current period.

9.4 **Founding Price.** The Organisation pays the Founding Price for each Pilot Community, as set out in Schedule D. The Founding Price is fixed for the Subscription Term. After the Subscription Term, Catapult may increase prices by no more than 5% in any 12-month period, on at least 60 days' written notice.

9.5 **More communities.** During the Subscription Term, the Organisation may add any of its other communities to the Service at the Founding Price, with no setup fee.

9.6 **Founding partner benefits.** The Organisation will receive early access to new Kinward features as they are released and may upgrade to new plans at a founding rate that Catapult will offer in writing.

10. Fees and payment

10.1 Fees are invoiced monthly in advance from the Conversion Date and are payable within 30 days of the invoice date, by card or bank transfer (ACH).

10.2 Fees are exclusive of sales and similar taxes, which the Organisation will pay where they apply.

10.3 If an undisputed invoice remains unpaid 30 days after its due date, Catapult may suspend the Service after giving the Organisation at least 10 Business Days' further written notice.

10.4 Nothing is payable for any period before the Conversion Date.

11. Data, privacy and consent

11.1 **Ownership.** The Organisation owns its Content. The Organisation grants Catapult a non-exclusive licence to host, copy, process and display the Content only to provide and support the Service.

11.2 **Export.** The Organisation may export all of its Content, including family contacts, at any time during the Term in a standard format, at no charge.

11.3 **Anonymised data.** Catapult may use anonymised, aggregated activity data, such as attendance counts and how activities and templates are rated, to improve the Service and its shared content library. Catapult will not disclose outside the Organisation any data that identifies a resident, family member or member of staff.

11.4 **Consents.** The Organisation is responsible for obtaining and keeping records of any consents required by law:

(a) from family members and other recipients, to receive text messages and emails;

(b) from residents, family members and staff, before photographs or names of identifiable people are published; and

(c) from residents, for participation in surveys.

Catapult will provide consent forms and opt-in tools in the Service and will honour opt-out requests promptly.

11.5 **Messaging law.** Each Party will comply with laws that apply to it about text messaging and email, including the Telephone Consumer Protection Act and the CAN-SPAM Act, and with carrier messaging rules.

11.6 **Health information.** The Service is not designed to store or send protected health information. The Organisation will not submit health or medical information about residents to the Service. If the Organisation is a covered entity under the Health Insurance Portability and Accountability Act and wishes to use the Service for any such information, the Parties must first sign a business associate agreement.

11.7 **Security.** Catapult will use reasonable administrative, technical and physical safeguards to protect the Content, and will notify the Organisation without undue delay after becoming aware of any unauthorised access to the Organisation's Content.

12. Cancellation and termination

12.1 **By the Organisation before conversion.** The Organisation may end this Agreement at any time before the Conversion Date, for any reason, by written notice. It owes nothing.

12.2 **By the Organisation after conversion.** After the Conversion Date, the Organisation may end this Agreement before the end of the Subscription Term by giving 60 days' written notice and paying an early termination fee equal to three months of fees at the then-current rate. No early termination fee is payable if the Organisation ends this Agreement under clause 12.4.

12.3 **By Catapult.** Catapult may end this Agreement by written notice:

(a) under clause 4.5 (failure to switch); or

(b) if the Organisation materially breaches this Agreement and does not put the breach right within 15 Business Days of written notice.

12.4 **By either Party for breach.** Either Party may end this Agreement by written notice if the other Party materially breaches it and does not put the breach right within 15 Business Days of written notice, or if the other Party becomes insolvent.

12.5 **Catapult discontinuing the Service.** If Catapult discontinues the Service, it will give the Organisation at least 90 days' written notice, and the Organisation owes no fees after the date the Service ends.

13. What happens when this Agreement ends

13.1 Catapult will keep the Organisation's Content available for export for 30 days after the end of this Agreement, and will then delete it within a further 30 days, except where the law requires it to keep a copy.

13.2 The Organisation keeps ownership of its domain names at all times. When this Agreement ends, the Organisation is responsible for pointing its domain name records to another website. On request, Catapult will keep the Organisation's website live for up to 30 days after the end of this Agreement to allow an orderly move, unless the Agreement was ended under clause 4.5 or for the Organisation's breach.

13.3 The website design, templates and software built for the Service remain Catapult's property and are not transferred to the Organisation. The Organisation keeps its Content.

13.4 Clauses 11.3, 11.7, 13, 14, 15, 16 and 17 continue after this Agreement ends, together with any obligation to pay fees accrued before it ends.

14. Intellectual property and feedback

14.1 Catapult owns the Service and all software, designs, templates and content library material it provides, and all improvements to them. Except for the right to use the Service under this Agreement, no rights are transferred to the Organisation.

14.2 The Organisation may give Catapult suggestions and feedback. Catapult may use them without restriction or payment, but will not identify the Organisation as their source without its consent.

14.3 **Case study and reference.** If the Success Criteria are met, the Organisation will take part in one case study and act as a reference for Catapult. Catapult will obtain the Organisation's written approval before publishing the case study or using the Organisation's name or logo.

15. Confidentiality

15.1 Each Party will keep confidential the other's non-public business, technical and financial information disclosed under this Agreement, and use it only for the purposes of this Agreement. This does not apply to information that is public through no fault of the receiving Party, already known to it, independently developed, or required to be disclosed by law.

16. Warranties and liability

16.1 Each Party warrants that it has authority to enter into this Agreement.

16.2 Catapult warrants that it will provide the Service with reasonable skill and care. Before the Conversion Date the Service is provided as part of an alpha programme and, except as stated in this Agreement, without any other warranty, express or implied.

16.3 Catapult will indemnify the Organisation against third-party claims that the Service, as provided by Catapult, infringes that third party's intellectual property rights. The Organisation will indemnify Catapult against third-party claims arising from the Content or from messages sent without the required consents.

16.4 Neither Party is liable for any indirect or consequential loss, or for loss of profits, revenue or goodwill.

16.5 Each Party's total liability under this Agreement is limited to the greater of (a) the fees paid and payable by the Organisation in the 12 months before the event giving rise to the claim and (b) US $5,000.

16.6 Nothing in this Agreement limits liability for fraud, wilful misconduct, the indemnities in clause 16.3, or any liability that cannot be limited by law.

17. General

17.1 **Notices.** Notices under this Agreement must be in writing and sent by email to the addresses on the signature page, or to any other address a Party notifies. A notice sent by email takes effect on the next Business Day after sending.

17.2 **Assignment.** Neither Party may assign this Agreement without the other's written consent, except to a successor to all or substantially all of its business, on written notice.

17.3 **Force majeure.** Neither Party is liable for delay or failure caused by events beyond its reasonable control. Dates and periods in this Agreement are extended for the length of any such event.

17.4 **Independent parties.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture or agency.

17.5 **Entire agreement.** This Agreement, including its Schedules, is the entire agreement between the Parties about its subject and replaces all earlier discussions and proposals. If there is any conflict, the clauses prevail over the Schedules.

17.6 **Changes.** Any change to this Agreement must be in writing and signed by both Parties.

17.7 **Waiver and severability.** A failure to enforce any right is not a waiver of it. If any provision is found unenforceable, the rest of this Agreement remains in effect.

17.8 **Governing law.** This Agreement is governed by the laws of the State of California. The courts of California have exclusive jurisdiction over any dispute arising from it.

17.9 **Counterparts and electronic signature.** This Agreement may be signed in counterparts and by electronic signature, each of which is an original.

Signatures

	Catapult	The Organisation
Legal name		
Address		
Signed by		
Name and title		
Email for notices		
Date		

Effective Date: the date of the last signature above.

Schedule A · Acceptance List

Signed off for each Pilot Community before Kickoff. Items may be added or removed by agreement at that time.

#	Item	Met
A1	Every Pilot Community page built, with this week's menu, the activity calendar and recent news	☐
A2	Apartments, care levels and photographs loaded	☐
A3	Inquiry form and tour booking tested end to end, including routing to the Organisation's customer relationship management system if it has one	☐
A4	The first four weeks of calendars and menus loaded	☐
A5	The website chat assistant answers the agreed set of test questions correctly and says it does not know when it should	☐
A6	Old page addresses redirected to the new pages	☐
A7	Accessibility check passed (WCAG 2.1 Level AA)	☐
A8	Family messaging and print tested; text-messaging registration approved	☐
A9	The Organisation's named reviewer has approved the Content	☐

Schedule B · Organisation Commitments and Adoption Targets

Commitment	Detail	When
People	A named decision-maker, and a champion in each Pilot Community	At signing
Baselines	Staff time diary, resident and family surveys, website snapshot, 2–4 weeks of attendance counts, and the last 90 days of inquiries if available	Pre-Alpha

Commitment	Detail	When
Content and contacts	Calendars, menus, apartment details and photographs; family contacts in any form	Pre-Alpha
The switch	Domain name records pointed to the Service within the Switch Deadline	Switch Date
Feedback	A short call every two weeks; check-ins at day 30, 60 and 90; access for surveys; a leadership interview at day 90	Alpha Period

Adoption Targets (agreed at Kickoff):

Target	Agreed level	By
Champions trained		Switch Date
Staff posting at least weekly in each Pilot Community		Week 2
Family contacts loaded		Day 30

Schedule C · Success Criteria

Measured per Pilot Community. Baselines are taken in the 2–4 weeks before the Switch Date.

#	Measure	Target	By
Staff			
S1	Each post reaches several channels (website, text, email, digest, print)	Every post reaches 3 or more channels	Week 1
S2	Time to build the monthly calendar, by staff time diary	Down 50% or more against baseline	Day 60
S3	Staff hours on calendar, newsletter and family updates, by staff time diary	Down 15 or more hours a month	Day 60
S4	Weekly posting without Catapult's help after day 30	At least 1 update in 10 of the last 12 weeks	Day 90
S5	Trained staff who post on their own within 14 days of training	80% or more	Day 30
S7	Messages sent without approval, or corrected after sending	Zero	Throughout
Residents			
R1	Residents who agree "I know what activities are on" (survey)	+15 points against baseline, or 75% or more	Day 90
R3	Residents who agree "I feel part of this community" (survey); resident suggestions added to the calendar	+10 points, or 70% or more; 1 or more suggestion a month	Day 90
Families			

#	Measure	Target	By
F1	Residents with at least one opted-in family contact	60% or more by day 30; 70% or more by day 90	Day 30 / 90
F2	Opted-in families who view or click the weekly digest	50% or more each week	From day 30
F3	Family unsubscribes and text opt-outs	5% or less	Day 90
F4	Families who agree "I know what's happening in my loved one's community" (survey)	+15 points, or 80% or more; response rate 25% or more	Day 90
F5	Families who agree "I feel part of my loved one's community" (survey); family-open events	+15 points, or 70% or more; 2 or more events a month	Day 90
F6	Family replies, event sign-ups and attendance per 100 families	Higher than baseline	Day 90
F7	Time for a change to reach the website and families	15 minutes or less	From week 1
F8	Messages delivered	95% or more	Day 30
Public website			
P1	Every Pilot Community page updated within the last 7 days	Always	From week 2
P4	Pages show this week's menu, calendar and recent news; prospects who say the website showed daily life	All pages every week; 70% or more say yes	Day 90
Setup and service			
A1	Kickoff to Switch Date	30 days or less	Pre-Alpha
A2	Kickoff to first calendar published	7 days or less	Pre-Alpha
A3	Kickoff to text messaging live	14 days or less	Pre-Alpha
A4	Support time after day 30	2 hours or less per community a month	Day 60
A6	Monthly scorecard sent	Every month	From day 30
A7	Leadership would recommend Kinward and wants to continue (day-90 interview)	Yes	Day 90
A8	Service uptime	99.5% or more	Throughout
A9	Full Content export tested and opens correctly	Tested once	Day 90

Schedule D · Pilot Communities, Founding Price and timings

Pilot Community	Address	Plan	Founding Price per month
		Community Life / Website	$519 / $349
		Community Life / Website	$519 / $349
		Community Life / Website	$519 / $349

Plans. *Website*: the community's public website. *Community Life*: the website plus family messaging by text and email, the weekly digest and large-print print.

Timing	Business Days
Review Window (clause 4.2)	
Switch Deadline (clause 4.3)	